



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

September 20, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20524
(THIRD REVISION)

EXPIRATION DATE: 2028-08-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Wilhelm Schmidt GmbH
Seeheim-Jugenheim, Germany

US AGENT: Black Forest Container Systems
Greenville, SC
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale and use of non-UN standard packagings similar to UN31A IBCs intended to contain ammonia solutions, chloroform, dichloromethane, or methanol. The packagings conform to all regulations applicable to a UN31A IBC, except as specified herein, for the transportation in commerce of the materials authorized by this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.102(c)(4) in that the vapor pressure provision IB3, material of construction provision IB3, and the discharge

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pressure will be above the 65kPa (9 psig) requirement of § 178.705(c)(2)(ii).

5. BASIS: This special permit is based on the application of Wilhelm Schmidt GmbH dated June 14, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia solution, <i>relative density between 0.880 and 0.957 at 15 degrees C in water, with more than 10 percent but not more than 35 percent ammonia</i>	8	UN2672	III
Chloroform	6.1	UN1888	III
Dichloromethane	6.1	UN1593	III
Methanol	3	UN1230	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The prescribed packagings are non-UN standard packagings constructed of 316L stainless steel conforming with all the requirements of § 178.705 for a UN31A intermediate bulk container (IBC) except as follows:

(1) IBC GF 900 T02 b, which is authorized for the transportation of either UN2672 or UN1593, contains a thermally activated fusible device as a pressure relief device set to discharge at 14 bar at 20 degrees Celsius (205.8 psig at 68 degrees Fahrenheit) in accordance with drawings and documents on file with the Office of Hazardous Materials Safety(OHMS).

(2) IBC GF 1000 K03 b, which is authorized for the transportation of UN1888 or UN1230, contains a thermally activated fusible device as a pressure relief device set to discharge at 14 bar at 20 degrees Celsius (205.8 psig at 68 degrees Fahrenheit) in accordance with drawings and documents on file with the OHMS.

b. TESTING:

(1) GF 900 T02 b shall be tested in accordance with § 178.814 to at least 5 bar (73.5 psig) during required pressure testing.

(2) GF 1000 K03 b shall be tested in accordance with § 178.814 to at least 4.3 bar (64.68 psig) during required pressure testing.

c. REQUALIFICATION: Each packaging must be retested and inspected in accordance with the requirements of § 180.352 for UN31A IBC's except as follows: GF 900 T02 b shall be inspected at least every five years in accordance with § 180.352(b)(3)(ii) except that in lieu of the wall thickness requirements of §178.705(c)(1)(iv), the wall thickness shown in drawing GF 900 T02 b must be met. Packagings not conforming to the design wall thickness or which show signs of corrosion, must be removed from hazardous material service.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.

b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.

e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue circular stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: VC/Casey Chambers